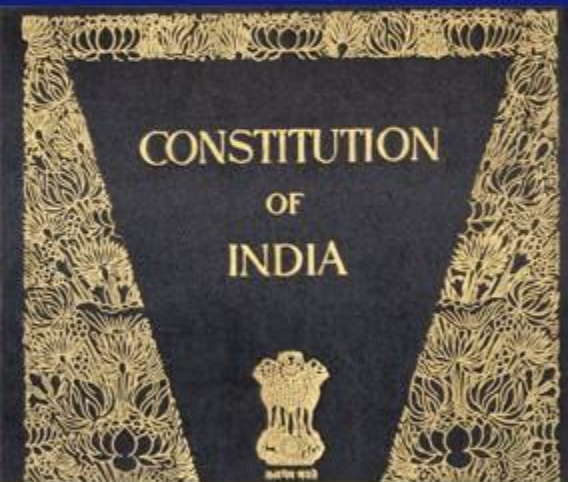


INDIAN POLITY



MODULE - 17

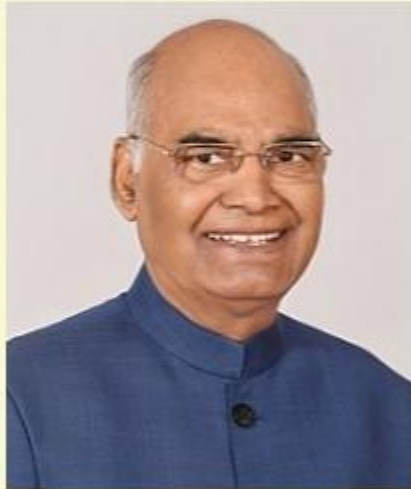
THE PREAMBLE

- INGREDIENTS OF PREAMBLE
- BERUBARI UNION CASE

KEY WORDS IN THE PREAMBLE

5

REPUBLIC



1 A Democratic Polity can be classified into two categories – Monarchy and Republic.

2 In a Monarchy the head of the State enjoys hereditary position. E.g.: Britain.

3 In a Republic on the other hand the head of the State is always elected directly or indirectly for a fixed period, E.g.: USA.

4 The term Republic in our Preamble indicates that India has an elected head called the President. He is elected indirectly for fixed period of five years.

KEY WORDS IN THE PREAMBLE

6

JUSTICE



- 1 Justice promises to give people what they are entitled to in terms of basic rights to food, clothing, housing, participation in the decision making and living with dignity as human beings
- 2 The Preamble covers all dimensions of justice- Social, Economic and Political
- 3 Social Justice denotes equal treatment of all citizens without any social distinction based on caste, colour, race, religion etc.

KEY WORDS IN THE PREAMBLE

6

JUSTICE



4 Economic justice denotes the non-discrimination between the people on the basis of economic factors.

5 A combination of social justice and economic justice denotes what is known as **Distributive Justice**.

6 Political Justice implies that all citizens should have equal political rights, equal access to all political offices and equal voice in the Government.

7 The ideal of Justice has been taken from the **Russian Revolution**.

KEY WORDS IN THE PREAMBLE

7

LIBERTY

- 1 The term Liberty means the absence of restraints on the activities of the individuals.



- 2 Liberty as prescribed in the Preamble is very essential for the successful functioning of the our democratic system.
- 3 However, Liberty does not mean license to do what one likes.
- 4 In brief, the Liberty conceived by the Preamble of the Fundamental rights is not absolute but qualified.
- 5 The idea of Liberty, Equality and Fraternity have been taken from the French Revolution.

KEY WORDS IN THE PREAMBLE

8

EQUALITY



1

The term Equality means the absence of special privileges to any sections of the society and the provision of adequate opportunities for all individuals.

2

The Preamble secures to all citizens of India equality of status and opportunity, all kinds of inequality were to be eliminated and all citizens of India should be treated equally and given equal protection of law.

KEY WORDS IN THE PREAMBLE

9

FRATERNITY

- 1 Fraternity means a sense of brotherhood. The Constitution promotes this feeling of Fraternity by the system of Single Citizenship.



- 2 Also fundamental duty says that it shall be the duty of every citizen of India to promote harmony and this spirit of common brotherhood.

- 3 The Preamble declares that the fraternity has to assure two things- the dignity of the individual and the unity and integrity of the nation.

- 4 The Constitution makers were very much concerned about the unity and integrity of our newly independent country.

KEY WORDS IN THE PREAMBLE

9

FRATERNITY



BROTHERHOOD

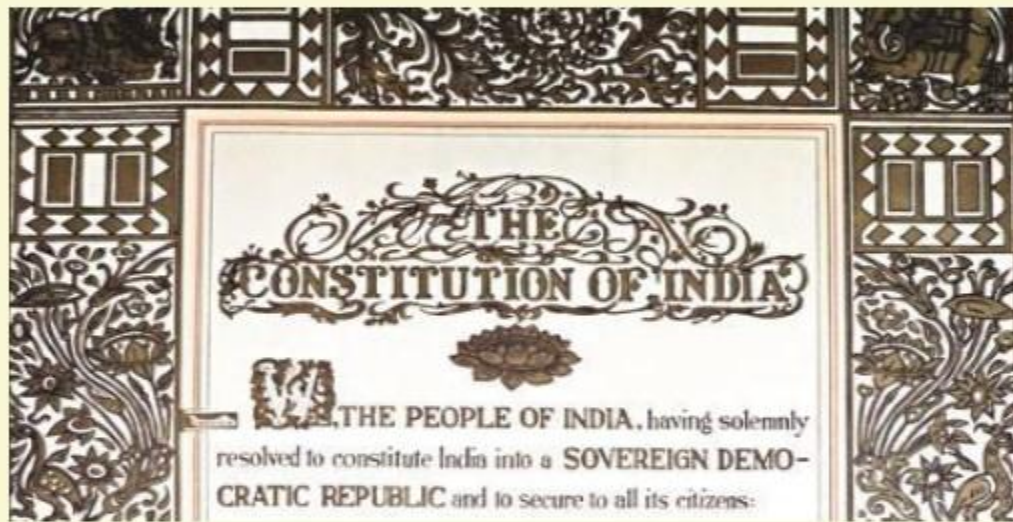
- *The terms Liberty, Equality and Fraternity are not to be treated as separate entities but as a Trinity.*
- *They form a union in that and to divorce one from another is to defeat the very purpose of the Democracy*

5 There was a need for harmonious coexistence among various religions, linguistic and cultural groups.

6 Inclusion of phrases like dignity of the individuals, fraternity among the people, unity and integrity of the nation in the Preamble highlight such a need.

7 The phrase unity and integrity of the nation embraces both the psychological and territorial dimensions of national integration.

IMPORTANCE OF PREAMBLE



- 1 Imagine reading a beautifully written book without an introduction or say without an index.
- 2 Obviously it would create mess and ambiguity in the mind of the reader who would pick up a book for the very first time.
- 3 Similarly, the Preamble to our Constitution embodies the fundamental values and philosophy on which the Constitution is based. It describes the aims and objectives, which the founding fathers of the Constitution strive to achieve.

IMPORTANCE OF PREAMBLE



ALLADI KRISHNASWAMY IYER

- 4** It contains the grand and noble vision of the Constituent Assembly and reflects the dreams and aspiration of the founding fathers of the Constitution
- 5** In the words of Sir Alladi Krishnaswamy Iyer, a member of the Constituent Assembly, “ the Preamble to our Constitution expresses what we had thought or dreamt so long”.
- 6** According to K.M.Munshi, the Preamble is the horoscope of our Sovereign Democratic Republic.

IMPORTANCE OF PREAMBLE



PANDIT THAKURDAS BHARGAVA

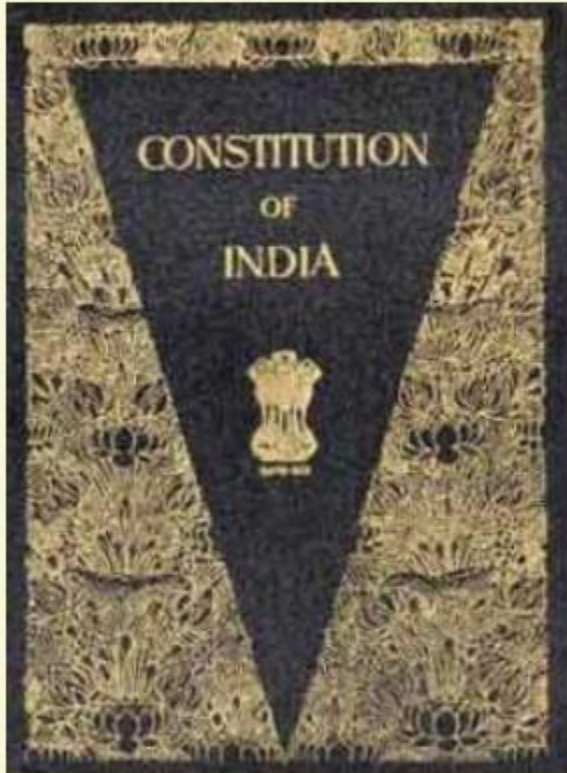
7

Pandit Thakurdas Bhargava another member of the Constituent Assembly said “the Preamble is the most precious part of the Constitution, it is the **soul of the Constitution**, it is a key to the Constitution, it is a jewel set in the Constitution, it is proper yardstick with which one can measure the worth of the Constitution”.

8

Preamble **may be unenforceable in the courts of law, but it is useful in interpreting the Constitution** wherever an ambiguity tends to occur.

IS PREAMBLE A PART OF CONSTITUTION?



- 1 One of the controversies about the preamble is as to whether it is a part of the Constitution or not.
- 2 In the Berubari Union case, the Supreme Court said that the **preamble shows the general purposes behind the several provisions in the Constitution and it is the key to the minds of the makers of the Constitution.**
- 3 Further, where the terms used in any article are **ambiguous or capable of more than one meaning** some **assistance at interpretation** may be taken from the objectives enshrined in the preamble.
- 4 Despite this recognition of the significance of the preamble, the **Supreme Court specifically opined that Preamble is not a part of the Constitution.**

IS PREAMBLE A PART OF CONSTITUTION?

WHAT IS BERUBARI UNION CASE?



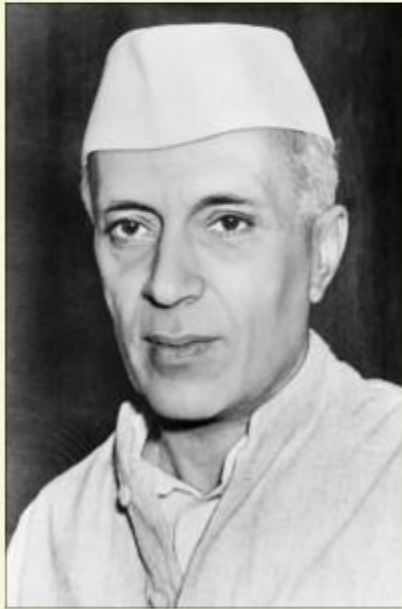
RADCLIFFE

- 1 At the time of partition of India and Pakistan, the task of demarcation of boundaries were assigned to **Sir Radcliffe**.
- 2 He distributed the various “thanas”(sub-districts) between India and Pakistan
- 3 The **thana of Berubari** in the Jalpaiguri district of West Bengal was awarded to India by Radcliffe.
- 4 But unfortunately it was not mentioned in the written text of the award.

IS PREAMBLE A PART OF CONSTITUTION?

WHAT IS BERUBARI UNION CASE?

- 5** This gave opportunity to Pakistan to raise a stake on Berubari saying that the region falls in the map of Pakistan.



- 6** Dispute continued until the Nehru- Noon agreement was signed in 1958 between India and Pakistan (Feroz Khan Noon was the Prime Minister of Pakistan).
- 7** In the agreement that was signed the territory of Berubari Union was divided and distributed equally between India and Pakistan.
- 8** However, this took place against the wishes of the West Bengal Government and there was much criticism on the Central Government against the decision taken.

IS PREAMBLE A PART OF CONSTITUTION?

WHAT IS BERUBARI UNION CASE?

- 9** The Union Government therefore decided to refer the matter to the Supreme Court.



- 10** Supreme Court said **Article 3** gives the Parliament the power to diminish state territory but does not give the power to cede territories.
- 11** The Supreme Court ruled that the Parliament has to bring an amendment to the Constitution under the procedure mentioned in **Article 368** in order to implement the **Nehru- Noon agreement** as this agreement includes the provision to cede a territory from India.
- 12** So **9th Constitutional Amendment Act, 1960** was enacted to give effect to the agreement.

IS PREAMBLE A PART OF CONSTITUTION?

WHAT IS BERUBARI UNION CASE?



13 Later in 1969, Supreme Court ruled that settlement of boundary dispute between India and any other Country doesn't require Constitutional amendment provided the dispute doesn't involve ceding of national territory.

14 That is why the 100th Constitutional Amendment Act was enacted to allow the exchange of enclaves between India and Bangladesh in the year 2015.

IS PREAMBLE A PART OF CONSTITUTION?

CONCLUSION OF BERUBARI UNION CASE

- 1** The Supreme Court thus decided that, the **preamble forms the key to the mind** of the framers of the Constitution.
- 2** But it **cannot prohibit or control** in any way, the bar to amend the Constitution contained in Article 368.
- 3** It is just a key to open the mind of the makers which may show the general purpose for which the Constitution was made.
- 4** It was declared that the **PREAMBLE IS NOT A PART OF THE CONSTITUTION**, inspite of the sovereign declaration made by the people of India.
- 5** The preamble is **neither a source of power** to the legislature **nor the prohibition up on the powers** of the legislature.

IS PREAMBLE A PART OF CONSTITUTION?

CONCLUSION OF BERUBARI UNION CASE

- 6 The Supreme Court in the Berubari Union case said that inspite of the Preamble declaring India to be a sovereign power (with the lines “We the people of India” popular sovereignty and will of the people is clear) **the mere declaration of “sovereignty” does not authorize it cede any part of the territory of India.**
- 7 The supreme court by this declaration made it clear that the Preamble is not a source of any substantive power.
- 8 To cede any part of our country is an extreme power in itself and thus requires a Constitutional Amendment through the Parliament.

“YES, PREAMBLE IS A PART OF CONSTITUTION!”

1 In the **Kesavananda Bharati Case** (1973), the Supreme Court rejected the earlier opinion and held that **PREAMBLE IS A PART OF THE CONSTITUTION.**

2 It observed that the Preamble is of extreme importance and the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble.

3 In the **LIC of India case (1995)** also, the Supreme Court again held that the Preamble is an integral part of the Constitution.

4 However, two things should be noted:

- 1)** The Preamble is neither a source of power to legislature nor a prohibition upon the powers of legislature.
- 2)** It is non-justiciable, that is, its provisions are not enforceable in courts of law

AMENDABILITY OF THE PREAMBLE

- 1 The question as to whether the Preamble can be amended under Article 368 of the Constitution arose for the first time in the historic case of *Keshavananda Bharati* (1973).



- 2 It was urged that the Preamble cannot be amended as it is not a part of the Constitution.
- 3 The petitioner contended that the amending power in Article 368 cannot be used to destroy or damage the basic elements or the fundamental features of the Constitution, which are enshrined in the Preamble.
- 4 The Supreme Court, however, held that the Preamble is a part of the Constitution.

AMENDABILITY OF THE PREAMBLE

5 The court stated that the opinion tendered by it in the Berubari Union (1960) in this regard was wrong, held that the **Preamble can be amended, subject to the condition that no amendment is done to the basic features.**



6 In other words, the court held that the basic elements or the fundamental features of the Constitution as contained in the Preamble cannot be altered by an amendment under Article 368.

7 The Preamble has been amended only once so far, in 1976, by the 42nd Constitutional Amendment Act, which has added three new words **Socialist, Secular and Integrity to the Preamble.** This amendment was held to be valid.

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